

PID-2021-400008-R

18 November 2021

Dr Richard McLean
2 McCubbin Street
FOOTSCRAY VIC 3011

Via email only: richarddrawsstuff@gmail.com

Dear Dr McLean

I am writing in response to your email to this Office on 12 November 2021, and your comments to our staff about the handling of your disclosure (our reference: PID-2021-400008).

Your email included a number of abusive comments directed towards the officer who handled your disclosure. This sort of behaviour is unacceptable. We expect our staff to treat you with courtesy and respect. We expect this courtesy to be returned. If you continue to engage with our staff in this way, we may have to limit your contact with us in future.

In your email, you have expressed dissatisfaction with this Office's handling of your disclosure and I understand that you disagree with the authorised officer's decision that your disclosure does not satisfy the requirements of a public interest disclosure (PID) under section 26 of the *Public Interest Disclosure Act 2013* (PID Act). I have treated your correspondence as a request that we review this decision.

You have also asked to be provided with the surname of the authorised officer who handled your disclosure. It is the policy of this Office that our staff provide their first name only. When a person contacts our Office, including to make a disclosure as you have done, they are provided with a reference number to use in any further engagement with our Office about that matter. The reference number for your disclosure is: PID-2021-400008.

In terms of your concerns about our handling of your disclosure and the decision reached, I have reviewed our records. While I accept that you may genuinely believe the information you have disclosed tended to show one or more instances of disclosable conduct, it was the authorised officer's assessment that when viewed objectively, your belief alone, was not sufficient (and therefore not reasonable grounds) to demonstrate any instances of disclosable conduct that is covered by the Commonwealth PID scheme.

The authorised officer also explained that a PID must concern the conduct of a Commonwealth Government agency (which includes people belonging to the agency and its contracted service providers). They explained the PID Act does not apply to the alleged conduct of state agencies and private entities and that this means the claims you have made in your disclosure about these types of bodies, cannot be progressed under the Commonwealth PID scheme.

The test in the PID Act is that the information must tend to show, or the discloser believes on reasonable grounds that the information tends to show, disclosable conduct. To satisfy this requirement, an allegation of wrongdoing must be more than an assertion, there must be more specific information to support that allegation. The allegation must also relate to a Commonwealth Government Agency or Commonwealth public official. In making your disclosure, you have not provided information about disclosable conduct by a Commonwealth Government Agency or Commonwealth public official and therefore your disclosure does not satisfy the requirements of a public interest disclosure under the PID Act.

In closing

Having reviewed our records, including the information you disclosed, I agree with the authorised officer's decision that your disclosure does not satisfy the requirements of a public interest disclosure under the PID Act and consider their explanation to you was appropriate.

While I acknowledge that you hold a different view to the authorised officer, I do not believe they applied the legislation in an unreasonable manner or that they failed to consider the information you disclosed. I consider the authorised officer was diligent in their assessment of your disclosure, they were professional in their dealings with you, that their decision was correct and the reasons for their decision were clearly explained to you.

As a matter of courtesy, I advise that after a review has been completed, we will consider and retain any further correspondence from you on the matter, but we will not reply unless we think it raises a new issue that requires our action. Any further requests or correspondence from you seeking to re-engage with our staff about your disclosure will not be responded to.

I also remind you that we expect our officers to treat you with courtesy and respect and that we ask you to engage with our staff in the same way.

Yours sincerely

Kathleen
Assistant Director
Public Interest Disclosure Team
Complaints Management and Education Branch
Office of the Commonwealth Ombudsman

Influencing systemic improvement in public administration